

Court No. - 3

Case :- WRIT - C No. - 61310 of 2015

Petitioner :- M/S Matrumal Dhannalal Oil Mill

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Raghvendra Kumar, J.

At the outset Sri Anshul Kumar Singhal holding brief of Sri Vinod Kumar Agarwal states that relief no.1 claimed in the writ petition is rendered infructuous, inasmuch as the excess security amount to the tune of Rs.11,75,818/- stands adjusted as per clause 4.20 (g) of the Electricity Supply Code, 2005 and the writ petition stands confined only in respect of relief no.2 seeking a mandamus to command the respondent to credit the amount of interest of security for the financial year 2014-15 at the bank rate as notified by Reserve Bank of India as per clause 4.20 (i) of the Electricity Supply Code, 2005.

From the pleadings, we find that petitioner has already made a representation dated 4.4.2015 before respondent no.4 with respect to the relief surviving in this petition.

Considering the facts that issue involved in the matter requires an investigation into question of fact, it would be proper that the authority may consider the grievance of the petitioner.

In view of the above, the writ petition stands disposed of with the direction to the Executive Engineer, Electricity Distribution Division District Hathras, respondent no.4 to consider and decide the representation made by the petitioner in accordance with law by a reasoned and speaking order preferably within a period of one month from the date of receipt of certified copy of this order.

In the facts there shall be no order as to costs.

Order Date :- 16.11.2015

Hasnain